

**BM CROSSBORDER LOGISTICS
(PTY) LIMITED**



TRANSPORT SERVICE AGREEMENT

BETWEEN

(THE CARGO CLIENT)

Esperence Mining

AND

Bm Crossborder Logistics (Pty) Ltd

(THE TRANSPORT SERVICE PROVIDER)

Drawn By:

Admin Department

Bm Crossborder Logistics (Pty) Ltd

61 13th Ave., Robyns Glen Unit5, Boksburg, Gauteng, South Africa

TRANSPORT AGREEMENT.

THIS TRANSPORT CONTRACT is entered into this 28th day of August 2026

Between the following Parties based at their following principal places of business:

Bm Crossborder Logistics (Pty) Ltd

Unit 5, Robyns Glen,

61 13th Avenue,

Boksburg, Gauteng, South Africa.

Tel +27 64 105 4703

Email; bmcrossborder@mail.com

Hereinafter referred to as the **Transport Service Provider**

And

ESPERENCE MINING SARL

Address: **DRC**

Phone: **+243 99954 1920**

Email:

Contact Person: **OFACK-SALIM**

Passport No: **X CD125H/RCCM/21-B-00400**



Hereinafter referred to as the **Cargo Agent**

WHEREAS:

- A. The **Service provider** is a Transporter, Logistics forwarder, Warehousing and Distribution Management Company, duly registered as such under the Companies Act, Laws of South Africa, which for purposes of this Agreement operates a fleet of motor transport trucks and possess the requisite capacity for surface transportation of consignment tendered for carriage under this Agreement.
- B. The **Cargo Agent** is a Company duly registered as such under the Companies Act, 2015 Laws of D.R.Congo, which for purposes of this Agreement shall tender such consignment for carriage in accordance with clause C 2 hereunder.
- C. The Cargo Client has agreed to contract the Transport Service Provider to provide the means of carriage of such consignment covered under this Agreement from the Cargo Client's designated point of origin to the Cargo Client's designated destination; and The Transport Service Provider has agreed to be so appointed in consideration of the following terms and conditions:

1. Effective Date and Duration.

This Agreement shall become effective upon execution by both Parties and shall remain in full force and effect until completion of the delivery services contemplated under this Agreement, unless terminated earlier in accordance with its terms.

Product and Quantity.

At the request of the Cargo Client, the Transport Service Provider shall, as an independent contractor, transport Sulphur Granules by road from the Cargo Client's designated loading point in Dar es Salaam (Tanzania) to the Cargo Client's designated delivery site in Lubumbashi (D.R.Congo)

2. Standards.

The Transport Service Provider hereby undertakes to provide, operate and maintain a dedicated fleet of vehicles and competent drivers in the operations and services undertaken or performed under this Agreement in the discharge of its obligations.

The Cargo Client hereby undertakes to ensure that the goods being tendered for carriage to The Transport Service Provider are legal goods and are not prohibited within the Republics in East and Central Africa,

Insurance and Security

- a) During the term of this agreement, the Cargo Client will ensure that goods are insured while on transit against normal risks (fire, theft and third-party liability) at his own expense and no liability will be attached to the Logistics Service Provider in this respect.
- b) The Transport Service Provider will ensure that the trucks are insured against normal risks (fire, theft and third-party liability) at his own expense and no liability will be attached to the Cargo Client in this respect.
- c) The Transport Service Provider shall ensure that the driver of the truck will also be insured in accordance with the law, whichever is applicable and no liability will be attached to the Cargo Client in this respect.
- d) The Transport Service Provider shall arrange for his own security for the trucks on transit.

3. Transport Rates.

The rate payable to The Logistics Service Provider by the Cargo Client for the operations and services undertaken or performed under this Agreement during the contract period shall be agreed as at when the transport service provider's services are needed and depending on loading & delivery points. This rate will be confirmed by way of email / WhatsApp messages between The Transport Service Provider and The Cargo Client.

For this particular load;

FOT Dar Es Salaam to Lubumbashi per 28/30 tons' truck

- Transport \$ 275 per ton
- Border fee \$ 15 per ton
- Total \$ 290 per ton

4. Terms of Payment.

The Cargo Client shall pay the Transport Service Provider the agreed transport charges for the road transportation of Sulphur Granules consignments in accordance with the rates agreed for each individual transport order.

Payment for each delivery shall be made as follows:

- 70% of the agreed transport charges shall be paid upon loading of the consignment; and
- 30% balance of the agreed transport charges shall be paid upon the vehicle's arrival at the Cargo Client's designated delivery site and prior to commencement of offloading.

Each delivery shall be treated as a separate transport assignment for purposes of invoicing and payment.

All payments shall be made directly to the Transport Service Provider via bank details provided below by the Transport Service Provider, in accordance with the agreed rates and payment terms applicable to each transport order.

The Transport Service Provider Bank Details:

- **RE: BANK ACCOUNT DETAILS FOR:**
Bm Crossborder Logistics (Pty) Ltd,
First National Bank (FNB)
Bm Crossborder Logistics (Pty) Ltd
Acc: 62843828908
Branch: 205609
Swift: FIRZAJJ

5. Obligations of the Logistics Service Provider.

- a. To provide trucks that are road worthy and that have the necessary permits to transport the cargo within East and Central Africa
- b. To provide Truck and Trailer Reg Nos, driver's name and Passport No and IDs to the Client for verification at the loading point.
- c. To ensure that every truck that is provided to load this cargo is adequately insured to cover all the insurable transport risks except for goods in carriage which the cargo owner should arrange.
- d. To ensure that every truck that is provided is of good quality to protect the cargo from any transit damage or loss.
- e. To transport the cargo as quickly as possible from the time of loading and to avoid any delays that can negatively impact the delivery lead time and the safety of the cargo.
- f. The Service Provider should provide regular truck update on the location of the trucks and in the event of a delay, shall highlight the reasons for the delay and the duration.
- g. To advise the Client when every truck with the cargo is dispatched from the loading site to enable the client to prepare for prompt offloading.
- h. To provide the Client with PODs once the completion of offloading within 24hrs after delivery where applicable.
- i. To send an official invoice to the Client for every truck delivered to the client together with scanned PODs for office records and balance payments.

6. Obligations of the Cargo Client.

- a. To advise the Service Provider of where each truck must proceed for loading, at least 24 hours prior.
- b. To arrange for the loading, documentation and release of every truck as quickly as possible.
- c. To advise the Service Provider when each truck is loaded and dispatched from its loading point.
- d. To arrange for goods insurance covering all risks including but not limited to weather risks, political unrest risks, road accidents which may result in partial or total loss of goods.
- e. To promptly pay the Service Provider for every truck delivery
- f. Cargo clients should pay final balance promptly to avoid delays which will attract a
- g. \$150 per day for each truck.
- h. Ensure 24hrs free day at the loading point, and 24hrs at the offloading point, after which waiting charges of \$150 per day will be applied beyond the stated timelines.

7. Contract Termination.

- a. Unless otherwise terminated by either Party, this contract shall remain in force for the duration of this shipment.
- b. In the event of termination by either Party, the Parties shall remain responsible to each other for all the outstanding loads that have been loaded but not delivered and for all the deliveries that have not been paid for respectively.

8. Confidentiality.

The Parties shall not disclose any information, dealings or transactions regarding this Contract to any unauthorized Party without the Consent of the other Party except when legally required to do so.

9: Commercial Undertaking.

The Parties shall at all times work in their Mutual interest for the successful delivery and completing of this Contract for the satisfaction of the Parties as well as the Exporter and the Importer of this shipment.

10. Dispute Resolution.

- a. The parties shall do their best to amicably resolve any dispute that might arise during this contract through discussions and negotiations between the Senior Management of the Parties.
- b. In the event a matter is not resolved by mediation the Parties will seek the mediation of a mutually agreed Mediator to preside of the mediation in South Africa.
- c. If mediation fails, each party will be free to seek alternative legal redress from the courts.

11. Legal Jurisdiction.

This contract shall be subject to the Laws of South Africa and any legal dispute arising thereof shall be handled and presided over by a competent South African Court in Johannesburg, South Africa.

12. Amendment.

This Agreement may by consent of both parties in writing be varied provided that there is adequate justification for such amendment.

13. Notices.

Any notice or other communication given or made under or in connection with the matters contemplated by this Agreement shall be in writing addressed to the parties at their respective addresses set forth below.

For: Cargo Agent: ESPERANCE MINING

Contact Person: OFACK - SALIM - MWHID - WAHID

Email: esperancemining@outlook.fr

For: Transporter: Bm Crossborder Logistics (Pty) LTD

Contact Person: Mr. Abraham Swanepoel

Email: bmcrossborder@mail.com

12. Applicable Laws:

This Agreement shall be subject to and construed in accordance with the Laws of South Africa.

IN WITNESS the parties hereto have duly affixed their respective hands to this contract on the day and year first before written.

THE PARTIES

BM CROSSBORDER LOGISTICS (PTY) LTD,

Unit 5, Robyns Glen,
61 13th Avenue, Boksburg,
Gauteng, South Africa.

Represented by: Abraham Swanepoel

Cell/WhatsApp: +27 64 105 4703

Email: bmcrossborder@mail.com

Signed: Boksburg Gauteng Date: 28/08/2026 Stamp:



Cargo Agent

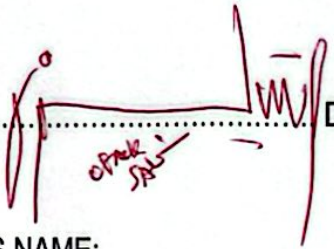
ESPERENCE MINING

Adress: 4933, de la revolution Road,

Represented by: OFACK - SALIM - MUHID - WANID

Cell/Whatsapp: +243 999 5419 20

Email: esperence.sole@gmail.com

Signed:  Date 1-9-2026..... Stamp.....



WITNESS NAME:

Designation/Job title:

ID No.:

Tel.

SIGNATURE.....